

Bharatiya Nyaya Sanhita 2023: India's New Criminal Law

The Bharatiya Nyaya Sanhita (BNS) 2023, effective July 1, 2024, marks a significant transformation in India's criminal justice system. This new law replaces the colonial-era Indian Penal Code 1860, consolidating and amending provisions to reflect contemporary societal needs. Structured into 20 chapters and 358 sections, the BNS modernizes criminal law for a new India.



Chapter I: Preliminary Provisions

These preliminary provisions lay the groundwork for the Bharatiya Nyaya Sanhita (BNS) 2023, ensuring clarity and consistent interpretation across the Act.

Section 1: Scope and Application

Defines the Act's territorial reach within India and its applicability to Indian citizens globally.

Section 2: Key Definitions

Establishes essential legal terms to ensure precise understanding throughout the BNS.

Section 3: General Explanations

Clarifies expressions and provides interpretive guidance for all other provisions.

Chapter II: Of Punishments

This chapter meticulously outlines the framework for criminal penalties under the Bharatiya Nyaya Sanhita (BNS) 2023, establishing clear guidelines for sentencing to ensure justice and proportionality.



Types of Punishments (Section 4 & 7)

Defines various penalties, including death, life imprisonment, rigorous/simple imprisonment, fine, and solitary confinement, distinguishing between the nature of rigorous and simple terms.



Commutation of Sentences (Section 5)

Provides provisions for the commutation of death sentences and life imprisonment, allowing for reduction or modification of the imposed penalty.



Fractions of Terms (Section 6)

Specifies how fractions of terms of punishment are calculated and applied, ensuring consistency in the execution of sentences.



Fine Amounts & Liability (Section 8)

Details the parameters for imposing fines, including the maximum amounts and liability in case of default or non-payment.



Multiple Offenses & Enhanced Punishment (Sections 9-13)

Sets limits on punishment for individuals convicted of multiple offenses and introduces provisions for enhanced punishment after a previous conviction, emphasizing recidivism.

Chapter III: General Exceptions

Chapter III of the BNS 2023 details the "General Exceptions," providing crucial legal defenses that negate criminal liability despite an act being committed. These provisions ensure that individuals are not held accountable for actions performed under specific circumstances, such as legal compulsion, accident, or self-defense.

Acts Under Compulsion or Mistake (Section 14)

Exempts acts committed by a person bound by law to do something, or who believes in good faith they are bound by law due to a mistake of fact.

Judicial and Court-Ordered Acts (Sections 15-16)

Protects judges acting judicially and individuals performing acts pursuant to a court's judgment or order from criminal liability.

Lawful Justification & Accident (Sections 17-18)

Covers actions justified by law and those resulting from an accident during the performance of a lawful act with proper care and caution.

Preventing Harm (Section 19)

Exempts acts done without criminal intent to prevent greater harm, provided the harm caused is minimal or unavoidable.

Capacity to Commit Offense (Sections 20-24)

Addresses the capacity for criminal intent, covering acts of children (below certain ages), persons of unsound mind, and individuals under intoxication.

Right of Private Defence

Establishes the right of an individual to defend their own body and property, or the body and property of others, against certain types of aggression.

Chapter IV: Abetment, Criminal Conspiracy & Attempt

This chapter delineates the critical provisions for holding accomplices criminally liable under the Bharatiya Nyaya Sanhita (BNS) 2023. It establishes accountability for individuals who facilitate, plan, or attempt crimes, even if the principal offense is not fully executed.



Abetment

Defines abetment as instigating, engaging in a conspiracy for, or intentionally aiding the commission of an offense.



Criminal Conspiracy

Establishes liability for two or more persons agreeing to commit an illegal act, whether the act is committed or not.



Attempt

Addresses direct movements toward the commission of an offense, making individuals liable even if the intended crime is not completed.

Chapter V: Offences Against Woman and Child

This chapter reflects modern India's steadfast commitment to protecting its most vulnerable populations. It consolidates various offenses against women and children under one comprehensive framework, introducing stringent provisions and enhanced penalties to ensure greater safety and justice.



Sexual Offences

Includes robust provisions against rape, sexual assault, and related crimes, with significantly enhanced penalties to deter such heinous acts.



Criminal Force and Assault Against Women

Specifically addresses acts of criminal force and assault targeting women, reinforcing legal safeguards against various forms of violence.



Offences Relating to Marriage

Covers illegal practices such as bigamy, dowry-related crimes, and forced marriage, aiming to uphold the sanctity and voluntariness of marital unions.



Causing Miscarriage

Details provisions concerning the unlawful termination of pregnancy, ensuring that such acts are performed legally and ethically to protect maternal and fetal health.



Offences Against Children

Encompasses a broad spectrum of crimes against minors, including child abuse, exploitation, and trafficking, with a focus on safeguarding their well-being and future.

Chapter VI: Offences Affecting the Human Body

This chapter outlines the legal framework designed to protect the physical integrity and personal liberty of individuals. It categorizes various offenses that directly impact the human body, establishing criminal liability for acts ranging from causing injury to unlawful detention and threats to life.

Offences Affecting Life

Covers grave crimes such as murder, culpable homicide, and their associated provisions, addressing acts that lead to the loss of life.

Hurt

Defines offenses related to causing bodily pain, disease, or infirmity, encompassing simple and grievous hurt.

Wrongful Restraint & Confinement

Addresses the unlawful restriction of a person's movement or the illegal detention of an individual against their will.

Criminal Force & Assault

Pertains to the intentional use of force against a person without consent, and making gestures or preparations intended to cause fear of violence.

Kidnapping, Abduction, Slavery & Forced Labour

Encompasses serious crimes against personal liberty, including taking persons away by force or fraud, and forcing individuals into servitude.

Chapter VII: Offences Against the State

This chapter delineates crimes that directly threaten the foundational security and sovereignty of the nation. It encompasses a range of severe offenses designed to protect the integrity of the state and its institutions from both internal and external threats.

Treason and Sedition

Defines acts of disloyalty and rebellion against the state and government, including incitement to disaffection and subversion.

Waging War Against the State

Addresses armed rebellion and hostile acts against the government, classifying them as grave threats to national peace and order.

Espionage & Disclosure of State Secrets

Criminalizes the unauthorized revelation of classified information and activities related to spying, safeguarding national intelligence.

Counterfeiting Government Seals

Prohibits the forgery of official government documents, stamps, and seals, ensuring the authenticity and trust in state-issued instruments.

Offences Relating to Elections

Includes provisions against tampering with electoral processes, bribery, and undue influence, ensuring free and fair democratic elections.

These robust provisions underpin the nation's commitment to preserving its stability, territorial integrity, and democratic principles against any form of subversion or attack.

Chapter VIII: Offences Relating to the Army, Navy and Air Force

This chapter specifically addresses criminal provisions applicable to military personnel, underscoring the unique legal framework necessary to maintain discipline and operational effectiveness within India's armed forces. These laws are critical for ensuring national security and upholding the high standards expected of military conduct.



Mutiny and Desertion

Provisions addressing unlawful rebellion against military authority and unauthorized absence from duty by service members.



Disobedience of Orders

Criminalizes the failure of military personnel to comply with lawful commands issued by superior officers.



Misconduct in Presence of Enemy

Penalizes acts of cowardice, dereliction of duty, or other failures when facing an enemy during combat operations.



General Offences by Personnel

Covers a broader range of crimes committed by armed forces members, maintaining order and justice within the military structure.

These provisions are fundamental to maintaining military discipline and ensuring the armed forces operate effectively to protect national security.

Chapter IX: Offences Relating to Elections

This chapter outlines critical provisions to safeguard the integrity of India's democratic electoral process, ensuring every citizen's right to free and fair elections is protected from manipulation and corruption.



Electoral Fraud

Prohibits the manipulation of voting processes, including hacking electronic voting machines and falsifying vote counts.



Bribery & Undue Influence

Criminalizes attempts to corruptly sway voters through monetary incentives, threats, or intimidation, ensuring free choice.



Personation

Addresses the illegal act of voting under a false identity or impersonating another registered voter.



Misconduct by Officials

Penalizes election officers who abuse their authority, neglect duties, or engage in partisan acts during elections.



Material Tampering

Covers the illegal destruction, alteration, or unauthorized possession of ballots, voting machines, and other election equipment.



These provisions collectively work to uphold transparency and trust in the electoral system, which is fundamental to India's democracy.

Chapter X: Offences Relating to Coin, Currency-Notes, Bank-Notes, and Government Stamps

This chapter is crucial for safeguarding the nation's economic stability and public trust in financial instruments. It defines and penalizes a range of offenses aimed at preventing the forgery and illicit use of coins, paper currency, bank documents, and official government stamps.

Counterfeiting Coins

Addresses the illegal act of manufacturing fake metallic currency, which undermines the integrity of the monetary system.

Counterfeiting Currency Notes

Criminalizes the forgery of paper money issued by the government, a serious threat to national financial security.

Counterfeiting Bank-Notes

Pertains to the falsification of documents issued by banks, such as promissory notes or checks, aiming to defraud financial institutions.

Counterfeiting Government Stamps

Prohibits the forging of official stamps and seals used by government authorities, ensuring the authenticity of public documents.

Using Counterfeit Currency

Penalizes individuals who knowingly circulate or tender fake money, completing the act of economic fraud.

These robust provisions are designed to protect the integrity of the financial system, prevent widespread economic fraud, and maintain public confidence in legitimate currency and official documentation.

Chapter XI: Offences Against Public Tranquillity

This chapter defines and penalizes crimes that disrupt public peace and order, ensuring citizens can enjoy public spaces without fear of violence, chaos, or undue interference. These provisions are vital for maintaining a harmonious society.



Rioting

Addresses violent assemblies of five or more persons, aimed at preventing widespread public disorder and destruction.



Affray

Criminalizes instances of fighting in public places that disturb the peace and alarm bystanders.



Unlawful Assembly

Prohibits gatherings of five or more individuals with the common intent to commit an unlawful act or crime.



Seditious Speech

Penalizes speech that incites violence or rebellion against the government or attempts to create disaffection among the populace.



Public Nuisance

Covers acts that cause common injury, danger, or annoyance to the public, including obstructions and health hazards.



Obscene Publications

Prohibits the distribution and sale of indecent or offensive materials that corrupt public morals.

These provisions are essential for safeguarding communal harmony and ensuring citizens can engage in daily life without threat to their peace and security.

Chapter XII: Offences by or Relating to Public Servants

This chapter is dedicated to offenses committed by individuals in public service, highlighting the legal framework designed to uphold integrity, prevent corruption, and ensure accountability within governmental institutions. These provisions are crucial for maintaining public trust and protecting citizens from the misuse of official power.



Abuse of Authority

Criminalizes the misuse of official power or position for personal gain or to cause undue harm, ensuring public servants act within their legal boundaries.



Corruption & Bribery

Addresses the acceptance or soliciting of illegal payments, gifts, or favors in exchange for official acts or influence, safeguarding against financial impropriety.



Extortion

Penalizes public servants who obtain money or property through threats of official action or by exploiting their position to coerce individuals.



Misconduct in Office

Covers dereliction of duty, negligence, or any improper conduct by public servants that violates ethical standards or official responsibilities.



Disobedience to Law

Addresses instances where public servants deliberately fail to follow established legal procedures or statutory requirements in the execution of their duties.

These stringent provisions are fundamental to ensuring that public servants operate with the highest levels of integrity and accountability, thereby protecting citizens from governmental abuse and preserving the sanctity of public office.

Chapter XIII: Contempts of the Lawful Authority of Public Servants

This chapter addresses offenses that undermine the authority and effectiveness of public servants, ensuring that official directives are respected and judicial processes remain unhindered. These provisions are fundamental for maintaining public order and upholding the rule of law.



Disobedience to Orders

Penalizes individuals who knowingly fail to comply with lawful orders issued by public authorities, crucial for administrative efficiency.

Resistance to Arrest

Criminalizes acts of obstructing or actively resisting law enforcement officers or other officials in the execution of their duties.



Escape from Custody

Addresses the unlawful departure or evasion from legal detention, including jails, police custody, or other forms of confinement.

Obstruction of Justice

Prohibits actions that interfere with legal proceedings, investigations, or the administration of justice, ensuring fair and impartial outcomes.



Disrespect to Court

Covers contempt of court and other acts that show disrespect or defiance towards judicial authority, essential for maintaining the dignity of the judiciary.

These provisions collectively safeguard the operational integrity of governmental and judicial bodies, ensuring compliance and respect for the legal framework.

Chapter XIV: False Evidence and Offences Against Public Justice

This chapter addresses crimes that directly undermine the integrity of the judicial system, focusing on acts that corrupt evidence, testimony, and the fair administration of justice.



Perjury

Criminalizes giving false testimony under oath, which distorts truth and impedes fair judgment in legal proceedings.



Fabricating Evidence

Prohibits creating false documents or physical evidence to mislead courts or investigators, thereby subverting justice.



Tampering with Evidence

Penalizes altering, concealing, or destroying evidence, an act that obstructs the discovery of truth in any investigation or trial.



Suborning Witnesses

Addresses the offense of inducing or coercing individuals to give false testimony, directly corrupting the witness system.



Obstruction of Justice

Covers actions that prevent witnesses from testifying or otherwise interfere with legal proceedings, ensuring unimpeded judicial processes.

These provisions are critical for maintaining public trust in the legal process and ensuring that judicial outcomes are based on truth and fairness.

Chapter XV: Offences Relating to Elections (Continued)

Building on previous provisions, this section expands on criminal offenses designed to rigorously protect the integrity and fairness of electoral processes, ensuring that every vote counts and the democratic will is truly reflected.

Undue Influence

Criminalizes acts of coercion or intimidation targeting voters, ensuring their right to make independent electoral choices without fear.

Electoral Malpractice

Addresses a range of improper conduct during elections, including false voting, impersonation, or unauthorized activities at polling stations.

Candidate Violations

Penalizes candidates for violations such as exceeding campaign finance limits, making false declarations, or engaging in corrupt practices.

Official Misconduct

Targets election officials who engage in misconduct, including tampering with votes, revealing secret ballots, or showing partiality in their duties.

Material Tampering

Prohibits the destruction, defacement, or alteration of ballot papers, electronic voting machines, or other official electoral documents.

These provisions work in concert with Chapter IX to establish a robust legal framework, safeguarding the sanctity of the ballot and fostering public confidence in the electoral system.

Chapter XVI: Offences Relating to Weights and Measures

This chapter addresses crimes designed to safeguard fair commercial practices and protect consumers from fraudulent activities involving product quality, quantity, and authenticity.



Fraudulent Weights & Measures

Penalizes the use of inaccurate scales or measuring devices to deceive consumers, ensuring transactions are based on true quantities.



Adulteration of Goods

Criminalizes the act of deliberately adding inferior or harmful substances to products, compromising their quality and safety.



Misrepresentation of Quality

Prohibits making false or misleading claims about a product's attributes, ensuring consumers receive what they are promised.



Unauthorized Marks

Addresses the forgery or unauthorized use of certification, quality, or origin marks, protecting brand integrity and consumer trust.



Selling Substandard Goods

Penalizes businesses that knowingly sell defective, damaged, or otherwise non-compliant products, ensuring goods meet expected standards.

These provisions are essential for upholding market integrity, fostering consumer trust, and ensuring that commercial dealings are conducted with honesty and transparency.

Chapter XVII: Offences Relating to Contempt of Court

This chapter outlines provisions designed to uphold the authority and dignity of the judiciary, ensuring that court orders are respected, proceedings are conducted fairly, and justice is administered without undue interference.



Civil Contempt

Focuses on non-compliance with judicial decrees, injunctions, or judgments, underscoring the necessity of respecting legal mandates issued by the court.



Criminal Contempt

Addresses direct interference with the administration of justice, such as disruptive acts in court or actions designed to hinder investigations or judicial processes.



Contempt by Publication

Prohibits the dissemination of information or opinions that attack the integrity or impartiality of the judiciary, thereby undermining public confidence in the legal system.



Contempt by Conduct

Covers unruly behavior, verbal abuse, or any action within the court premises that compromises order, decorum, or the solemnity of judicial proceedings.



Contempt by Interference

Includes actions like intimidating witnesses, destroying evidence, or any attempt to pervert the course of a fair trial and obstruct justice.

These provisions are crucial for maintaining the institutional integrity of the courts and ensuring public trust in the fair and impartial application of the law.

Chapter XVIII: Offences Relating to Elections (Supplementary)

These supplementary provisions expand upon existing electoral laws, ensuring comprehensive coverage of all potential crimes that could undermine the integrity and fairness of democratic processes.

Offences by Voters



Illegal voting practices, including multiple voting, impersonation, or registration fraud, are criminalized to protect the sanctity of each vote.

Offences by Candidates



Provisions addressing campaign finance violations, false declarations of assets or qualifications, and other unethical practices by those seeking office.

Electoral Materials Tampering



Specific offenses for the destruction, defacement, or unauthorized alteration of ballot papers, electronic voting equipment, and other essential electoral documents.

Electoral Process Interference



Criminalizes actions that interfere with voting procedures, such as obstructing access to polling stations, intimidating voters, or disrupting vote counting.

Together with the provisions in Chapter XV, these laws form a robust framework to safeguard the electoral system, upholding transparency and public confidence in election outcomes.

Chapter XIX: Offences Relating to Forgery

This chapter delineates criminal provisions aimed at preserving the integrity and authenticity of documents, thereby preventing fraud and deception through document manipulation.

	Forgery Criminalizes the act of creating false documents or maliciously altering genuine ones, encompassing signatures, writings, or other material changes designed to deceive.
	Counterfeiting Seals Addresses the illegal reproduction or imitation of official seals, stamps, or marks used by public authorities, corporations, or individuals to authenticate documents.
	Using Forged Documents Penalizes individuals who knowingly present, circulate, or utilize any forged document with the intent to defraud or cause harm, even if they were not the original forger.
	Forgery of Currency Prohibits the illegal printing, production, or distribution of fake money, banknotes, or other negotiable instruments, aiming to protect financial systems and public trust.
	Forgery of Government Documents Specifically targets the falsification of official government papers, licenses, certificates, passports, or any document issued by public administration, undermining state authority.

These comprehensive provisions are vital for upholding legal and commercial veracity, safeguarding public trust in documentation, and ensuring that transactions and identities are protected from deceit.

Chapter XX: Offences Relating to Cyber Crimes and Digital Fraud

This chapter addresses the complex challenges posed by modern digital crimes, outlining provisions designed to protect individuals, businesses, and national infrastructure from the evolving landscape of online threats.

	Unauthori zed Access Criminalizes hacking and unauthorized entry into computer systems, protecting digital perimeters from malicious intrusion.		Data Theft and Misuse Penalizes the stealing, copying, or misuse of personal, financial, or confidential information stored digitally.		Cyber Fraud Targets online scams, phishing attempts, and digital deception aimed at defrauding individuals or organization s.		Malware and Viruses Prohibits the creation, distribution, and deployment of harmful software designed to disrupt, damage, or gain unauthorized access to systems.
	Identity Theft Addresses the fraudulent acquisition and use of another person's digital identity for financial gain or other malicious purposes.		Cyberstal king & Harassme nt Criminalizes online threats, intimidation, and persistent harassment through digital platforms, ensuring safety in virtual spaces.				

These provisions are crucial for safeguarding citizens in the digital age, fostering a secure online environment, and ensuring accountability for malicious digital activities.

Bharatiya Nyaya Sanhita 2023: Key Takeaways

The Bharatiya Nyaya Sanhita (BNS) 2023 marks a monumental shift in India's criminal justice system, embodying a commitment to modernize and streamline legal frameworks for the 21st century.

Comprehensive Legal Overhaul Comprises 358 sections across 20 chapters, providing a holistic and integrated framework for all aspects of criminal law in India.	Addressing Contemporary Crimes Introduces a modern approach by explicitly criminalizing new-age offenses, particularly focusing on cyber crimes and digital fraud.	Enhanced Protections Strengthens legal safeguards for vulnerable populations, with stringent provisions aimed at protecting women and children from various forms of exploitation and abuse.
Tackling Corruption & Abuse Implements robust measures and stringent penalties designed to combat corruption and hold individuals accountable for abuse of authority.	Safeguarding Democratic Processes Establishes comprehensive electoral safeguards to uphold the integrity and fairness of democratic processes, ensuring free and transparent elections.	Balanced Framework Strikes a critical balance by protecting both individual rights and public order, fostering a just and stable society.
Historic Replacement Effective from July 1, 2024, the BNS replaces the 164-year-old Indian Penal Code, signifying a modernized legal foundation for India.		

The BNS represents India's commitment to modernizing its legal framework for the 21st century, ensuring relevance and efficacy in a rapidly evolving world.